CAPITAL CASE
IN THE TENNESSEE SUPREME COURT
AT NASHVILLE

STATE OF TENNESSEE,
Movant,
v.
BYRON LEWIS BLACK,
Respondent.

Case No. M2000-00641-SC-DPE-CD

Execution Date: October 8, 2020

**MOTION TO RESET EXECUTION DATE DUE TO COVID-19 PANDEMIC**

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Byron Black, by counsel, moves this Court to reset his execution date scheduled for October 8, 2020. Because of the COVID-19 pandemic, Mr. Black's counsel cannot properly prepare for his competency to be executed hearing required to take place during the middle of August. Nor can counsel prepare for clemency proceedings which must take place simultaneously. This motion is made under the Sixth, Eighth, and Fourteenth Amendments to the United States Constitution; Article 1, §§ 8, 16, and 32 of the Tennessee Constitution; this Court's inherent authority under Tenn. Code Ann. § 16-3-503; and Tennessee Supreme Court Rules 12.4(A), 12.4 (E). In support of his motion, Mr. Black states the following.

## INTRODUCTION

1. The COVID-19 pandemic poses unprecedented challenges to the legal community. This Court appropriately continued the judicial state of emergency through May 31, 2020, and ordered the suspension of jury trials until July 3, 2020, subject to further order of the Court. In Re: COVID-19 Pandemic, No. ADM2020-00428, Order Modifying Suspension of In-Person Court Proceedings and Further Extension of Deadlines (Tenn. April 24, 2020). The continuing suspension of in-person judicial proceedings for all but the most emergent cases makes sense.

2. As of Tuesday, August 28, 2020, the Tennessee Department of Health reported 10,005 positive cases state-wide with 188 deaths.

https://www.tn.gov/health/cedep/ncov.html (last visited April 28, 2020).

3. Sunday, April 26, was the largest jump in positive cases in our state to date. Id. Nashville reported 2,588 COVID-19 cases on Tuesday. https://www.asafenashville.org/ (last visited April 29, 2020). Twenty-four Nashvillians have died. Id. As new cases of the virus continue to rise, Nashville cannot determine the date that phased reopening can safely begin. Samantha Max, Nashville Coronavirus Cases Continue to Mount, Slowing Plans to Reopen, WPLN (April 28, 2020), https://www.tn.gov/correction/frequently-asked-questions-regarding-covid-19.html (last visited April 29, 2020).

4. COVID-19 is inside Tennessee prisons. Bledsoe County has one of the worst outbreaks in the nation. Steven Hale, The Bledsoe County Prison COVID-19 Outbreak is One of the Worst in the Country, Nashville Scene (April 27, 2020),

https://www.nashvillescene.com/news/pith-in-the-wind/article/21130409/the-bledsoe-county-prison-covid19-outbreak-is-one-of-the-worst-in-the-country (last visited April 29, 2020). The Tennessee Department of Correction reports that as of April 28, 2020, only 3,808 inmates have been tested. TDOC Inmates COVID-19 Testing, Attachment A. 756 prisoners have tested positive. Id. Only two inmates have been tested at Riverbend Maximum Security Institution which houses death row inmates. On April 27, 2020, the department revealed that one of those inmates is positive for COVID-19.

5. New cases of the virus are rising in prisons at a startling rate. The Marshall Project reports "[t]he number of new cases among prisoners is more than doubling each week, showing that the curve used to measure when the virus is under control is still soaring in prisons[.]" Kate Park, Tom Meagher, Weihua Li, Tracking the Spread of Coronavirus in Prisons, (April 24, 2020, 3:05 PM), https://www.themarshallproject.org/2020/04/24/tracking-the-spread-of-coronavirus-in-prisons (last visited April 29, 2020).

6. As the State begins to gradually and cautiously reopen, it is clear that social distancing, the wearing of face coverings and gloves, and admonishments for those who can to stay at home will continue throughout the summer. White House Coronavirus Task Force Coordinator Deborah Birx stated on Sunday "social distancing will be with us through the summer to really ensure that we protect one another as we move through those phases." Felicia Sonmez, Paige Winfield Cunningham and Meryl Kornfield, Social Distancing Could Last for Months, White House coronavirus coordinator says, The Washington Post

(April 26, 2020, 6:08 PM), https://www.washingtonpost.com/politics/social-distancing-could-last-months-white-house-coronavirus-coordinator-says/2020/04/26/ad8d2f84-87de-11ea-8ac1-bfb250876b7a_story.html (last visited April 27, 2020).

7. Experts agree that the country can expect a second wave of the pandemic to coincide with the fall flu season. Dr. Anthony Fauci, Director of the National Institute of Allergy and Infectious Diseases and

a member of the White House's Coronavirus Task Force stated, "We will have coronavirus in the fall ... I am convinced of that because of the degree of transmissibility that it has, the global nature. What happens with that will depend on how we're able to contain it when it occurs." Savannah Behrmann, "Convinced": Fauci Says There Will Be Coronavirus in the Fall After Trump Says "It May not Come Back," USA Today (April 23, 2020, 9:56 AM) (last visited April 27, 2020).

8. While Tennessee is beginning to reopen the economy, Tourist Department Commissioner Mark Ezell stated, "we are not returning to business as usual." Joel Ebert, Tennessee Pledge: Gov. Lee Rolls Out Reopening Guidelines for Restaurants, Retail Stores, The Tennessean (April 24, 2020, 2:31 PM), https://www.tennessean.com/story/news/politics/2020/04/24/tennessee-governor-reveals-reopening-guidelines-restaurants-stores/3019032001/ (last visited April 27, 2020).

9. None of us knows what the future holds, but we all have an obligation to minimize the risk of spreading the virus. As Chief Justice Bivens said in a statement posted to the Court's website:

[T]he Court strongly encourages all courts to continue to operate through remote proceedings such as video or audio conferencing whenever possible, even if the matter can be handled in-person in compliance with the judicial district's approved plan. We have a long way to go in defeating this virus, and the more social distancing that can be done, the better it will be for everyone. https://tncourts.gov/press/2020/04/24/supreme-court-extends-judicial-emergency-may-31-allows-judicial-districts-submit (last visited April 27, 2020).

10. Governor Bill Lee asks Tennesseans to continue to practice social-distancing, wear face coverings when in public, and for businesses to allow those who can to work from home. "Social distancing works, and as we open up our economy it will be more important than ever that we keep social distancing as lives and livelihoods depend on it." https://www.fox13memphis.com/news/local/safer-home-order-tennessee-will-expire-april-30-governor-says/5DUO6HYX5BC3ZKL6TKX476OWRI/ (last visited April 27, 2020). Noting that the "threat from COVID-19 is far from over," in Executive Order #30 Governor Lee emphasizes that "[s]taying at home when possible and limiting unnecessary activity [is] still critically important to maintaining a healthy and economically vibrant Tennessee." Exec. Order 30, An Order Allowing Tennesseans to Return to Work Safely While Encouraging Continued Adherence to Health Guidelines to Limit the Spread of COVID-19, at 2-3 (April 28, 2020). Governor Lee's Order explains "avoiding unnecessary public interactions is critical to

protecting the health and safety of Tennesseans[.]" Id, at 3. To that end, Governor Lee "strongly enocourage[s] [Tennesseans] to continue to stay at home and to minimize in-person contact with people not in the same household, except when engaging in critical activities[.]" Id. The Governor's order "strongly urge[s]" employers to the greatest extent practicable to equip, encourage, allow, or require employees to work remotely or via telework from home." Id., at 2.

11. Consistent with the guidance of the CDC and orders from State and local governments, the Federal Public Defender's Office in

Nashville has directed its staff to work remotely and to limit in-person contact to emergency situations. Only a skeleton crew remains on site. Working remotely presents several challenges for representation of clients under a sentence of death whose case files are voluminous. The office is not designed to operate with remote staff, and technological obstacles are inevitable and on-going.

12. Daily life is severely disrupted. These disruptions negatively affect Mr. Black's counsels' ability to prepare for his competency to be executed hearing or his case for clemency.

**A COMPETENCY HEARING IS IMPOSSIBLE AT THIS TIME**

13. The United States and Tennessee Constitutions prohibit the execution of incompetent prisoners. Madison v. Alabama, 139 S.Ct. 718 (2019); Van Tran v. State, 6 S.W.3d 257 (Tenn. 1999). This Court recognizes that Mr. Black has a constitutional right to an adjudication of his colorable claim.

Mr. Black has ... raised the issue of his present competency to be executed and requests a competency hearing under Van Tran v. State, 6 S.W.3d 257 (Tenn. 1999). In accordance with the procedures adopted by this Court in Van Tran v. State and the standard set forth in State v. Irick, 320 S.W.3d 284 (Tenn.

2010); see also Madison v. Alabama, 139 S.Ct. 718 (2019), the issue is remanded to the Criminal Court for Davidson County, where Mr. Black was originally tried and sentenced, for a determination of his present competency, including the initial determination of whether he

has met the required threshold showing. To ensure the determination of Mr. Black's competency to be executed occurs in close proximity to his scheduled execution date, the filing requirements established in Van Tran are hereby modified as follows. Mr. Black shall file his petition alleging incompetency to be executed in the trial court no sooner than July 24, 2020 and no later than July 28, 2020. In all other respects, the proceedings shall be conducted in accord with the procedures and timelines set forth in Van Tran. Order, State v. Black, No. M2000-00641-SC-DPE-CD (Tenn. Feb. 24, 2020).

14. The timeframe for the adjudication of Mr. Black's competency to be executed claim is driven by the Van Tran requirements which tether the competency adjudication to the execution date. Based upon this Court's setting of the October 8 execution date, this Court ordered that Mr. Black file his petition between July 24 and July 28, 2020. Further, the order requires that the petition be supported by contemporary data.

The likely hearing on the petition is mandated to occur in August. The hearing will require the testimony of expert witnesses.

15. Mr. Black's counsel cannot responsibly or safely comply with this timeline given the nationwide outbreak of COVID-19 and its presence within Riverbend Maximum Security Institution.

16. First, Mr. Black's identified expert witnesses reside out of state, including the states of California, Pennsylvania, and Georgia. Interstate travel is highly discouraged by the CDC. Three of Mr. Black's experts are in the high-risk group of individuals advised to stay at home

even as the states begin to open. Mr. Black's experts cannot travel to Nashville and conduct a contemporary evaluation in July.

17. Second, a key component of Mr. Black's claim is the extent of his brain damage. "The State does not contest that Black currently has brain damage. But the source of his condition is highly disputed." Black v. Bell, 664 F.3d 81, 88 (6th Cir. 2011). 1 Mr. Black requires neuroimaging studies to demonstrate the nature and progression of his brain damage. Mr. Black's counsel has successfully arranged for similar studies, including in Mr. Black's case.

18. Neuroimaging studies in 2001 revealed that Mr. Black has significant brain damage. The studies showed several areas of damage including "ventricular atrophy." Deposition of Dr. Ruben Gur, at 51,

1State expert Dr. Susan Vaught "admitted that [Mr. Black] has a relatively impaired brain." Black v. State, No. M2004-01345-CCA-R3PD, 2005 WL 2662577, at *10 (Tenn. Crim. App. 2005). Dr. Vaught postulated that Mr. Black suffered from some sort of degenerative brain disease. Attachment B. Dr. Gur explained "Large Ventricles are a cardinal sign of schizophrenia, but appear in mental retardation and various forms of cerebral dystrophy or atrophy related disorders." Id. Dr. Gur "interpreted [Mr. Black's] MRI as being severely abnormal[.]" Id., at 60.

19. Dr. Gur prepared several visual aids which summarize his findings and document Mr. Black's organic brain damage:

20. To obtain current neuroimaging studies counsel will need to arrange for the testing with a qualified imaging facility. This testing

cannot be performed at this time because hospitals are reserving the use of their imaging equipment for COVID-19 and other emergency patients. Further, it is unlikely that any health care facility would permit Mr. Black to undergo imaging given the outbreak of COVID-19 in the prison system.

21. The transportation of Mr. Black for neuroimaging studies poses a significant risk of transmission of the disease. Mr. Black would

be transported to the facility by a team of corrections officers. Mr. Black and the officers would be at risk to contract the disease at the hospital. This further risks the spread of the disease within the prison. The dangers are not just to the prisoners but also to the officers and their friends and family.

22. Third, Mr. Black's witnesses cannot travel to Nashville and testify in person for the hearing in August given their own health conditions and the predicted spread of the disease through the summer months. On April 27, the IMHE at the University of Washington adjusted their predictions to reflect the impact of increased mobility within the country. The number of predicted deaths rose from 60,000 to 74,073 by August 4, 2020.

https://covid19.healthdata.org/united-states-of-america (last visited April 28, 2020). At the time of this writing, the CDC reported the number of COVID-19 cases in the country was reported at 981,246 with 55,258 deaths. https://www.cdc.gov/coronavirus/2019-ncov/cases-updates/cases-in-us.html (last visited April 29, 2020).

23. Expert testimony in this case cannot be effectively presented via Zoom. Video-conferencing software has been utilized within the

courts to address emergency, and often routine, matters, but it is ill- suited for a competency to be executed hearing in a capital case. This hearing will involve the presentation of numerous physical exhibits and complex testimony regarding Mr. Black's mental and physical ailments.

24. Mr. Black has a constitutional right to a full and fair hearing on his claim which he cannot obtain during the COVID-19 pandemic with an October 8, 2020 execution date. Panetti v. Quarterman, 551 U.S. 930 (2007). The COVID-19 Pandemic is Interfering With Mr. Black's Ability to Prepare His Case for Clemency

25. Mr. Black also has a right to request executive clemency. "It is an unalterable fact that our judicial system, like the human beings who administer it, is fallible." Herrera v. Collins, 506 U.S. 390, 415 (1993). "Executive clemency [provides] the 'fail safe' in our criminal justice system." Id., quoting K. Moore, Pardons: Justice, Mercy, and the Public Interest 131 (1989).

26. A central theme in his clemency request will be Mr. Black's intellectual disability and how the courts failed to provide Mr. Black a full and fair adjudication of his claim because of the evolving nature of the case law and ineffectiveness of his lawyers at the 2005 Atkins hearing. Proof of Mr. Black's intellectual disability was presented piecemeal. Because of procedural technicalities, Mr. Black has been denied the opportunity to have proof from the nation's foremost experts

heard in a hearing in open court. See Declaration of Dr. Stephen Greenspan, Attachment C and Declaration of Dr. Marc Tasse,

Attachment D. These are matters properly addressed to the Governor in clemency.

27. Mr. Black's most recent IQ score was 67 on WAIS-IV administered by an expert witness who frequently testifies for the State. This same expert found evidence of neurocognitive deficits.

28. Mr. Black will also submit evidence of his brain damage to the Governor in his clemency petition. He requires neuroimaging, as discussed above, to fully establish his case.

29. A case for clemency also includes information from family, friends, co-workers, and other third parties with information that courts cannot consider, but which is relevant to the case for mercy. This investigation is entirely separate from the investigation performed in post-conviction court proceedings. A typical clemency effort consumes hundreds of hours of staff time, extensive travel to locate and develop witnesses who have relocated away from middle Tennessee, and face to face interviews. Many of those individuals are of an age as to put them at high risk for COVID-19.

30. It would be irresponsible and against the public's interest to conduct the necessary investigation during this pandemic. Mr. Black's team cannot conduct the work necessary to fulfill their obligation to him without putting themselves and others at risk. There is a tension between counsels' obligation to Mr. Black and to their own personal safety and that of their families and coworkers.

31. Clemency plays a vital role in our system of capital punishment. An inadequate investigation and presentation deprives the condemned of his rights and deprives the Governor of critical information necessary to carry out his most solemn duty.

32. No efforts can, or should, be accomplished without frequent in person contact with Mr. Black. This is particularly important given the need to provide current data regarding Mr. Black's mental status. Legal visits at Riverbend Maximum Security Institution have been suspended until further notice. https://www.tn.gov/correction/frequently-asked-questions-regarding-covid-19.html (last visited April 29, 2020). And for good reason. In the words of the Department of Correction, prisoners are a "vulnerable population." Id. Governor Lee's April 28, 2020 Executive Order #30 states "[s]pecial care should be taken to protect vulnerable populations." Exec. Order # 30, at 4. The legal team could inadvertently introduce the virus into the institution. Conversely, the legal team could contract the virus and spread it in the community. Telephone access is difficult while the legal team is working remotely. Telephone conversations lack the privacy necessary to protect the attorney/client privilege and are wholly inadequate given the stakes at hand.

33. The limitations resulting from the pandemic have vexed death penalty attorneys nationwide. Emily Olson-Gault, Director and Chief Counsel of the American Bar Association Death Penalty Representation Project, explains the unique responsibilities of counsel representing

men with imminent execution dates in a declaration dated April 3, 2020:

Underlying much of the ABA Guidelines is the recognition that defending capital cases requires extraordinary time and effort at every stage of a capital proceeding, including postconviction, habeas corpus, and once an execution warrant has issued. See Guideline 1.1, Commentary ("'Every task ordinarily performed in the representation of a criminal defendant is more difficult and time-consuming when the defendant is facing execution.' ... Due to the extraordinary and irrevocable nature of the penalty, at every stage of the proceedings counsel must make 'extraordinary efforts on behalf of the accused'" (quoting, first, Douglas W. Vick, Poorhouse Justice: Underfunded Indigent Defense Services and Arbitrary Death Sentences, 43 BUFF. L. REV. 329, 357-58 (1995) and, second, ABA Standards for Criminal Justice:

Defense Function, Standard 4-1.2(C), (3d ed. 1993)). The need for time and resources to prepare the defense is due in part to the tremendous amount of investigation that the capital team must complete to adequately represent a person under a death sentence. Attachment E, at 2-3. Ms. Olson-Gault continues:

During the month of March 2020, I have spoken with capital defenders and pro bono attorneys all over the United States as they attempt to cope with the unprecedented situation created by the COVID-19 global pandemic. My understanding from these conversations is that most capital defense teams are unable to conduct

the large majority of the investigation and expert work required in capital representation (see ¶¶18-31, infra). This is due to restrictions set in place by state and local governments, as well as departments of corrections and institutional defender offices and law firms, out of a concern for public health and the welfare of employees. As a result, the already extremely limited time available to capital teams has been truncated significantly because of health concerns related to COVID-19. Time is a scarce resource in all capital representation, and never more so than at the post- conviction or habeas corpus stages, or when an execution warrant has issued. See Guideline 1.1, Commentary ("Post-judgment proceedings demand a high degree of technical proficiency, and the skills essential to effective representation differ in significant ways from those necessary to succeed at trial. In addition, death penalty cases at the post- conviction stage may be subject to rules that provide less time for preparation than is available in noncapital cases. Substantive pleadings may have to be prepared simultaneously with, or even be delayed for, pleadings to stay the client's execution."); Guideline 10.15.1, Commentary, n.335 ("When a capital case enters a phase of being 'under warrant'—i.e., when a death warrant has been signed—time commitments for counsel increase, "due in large part to the necessary duplication of effort in the preparation of several petitions which might have to be filed simultaneously in different courts.'"). When the already limited time is further truncated, whether by operation of the legal system or by something wholly external like a natural disaster, counsel will not have adequate time to prepare their

case and this, in turn, jeopardizes due process and fairness in capital cases. See Guideline 6.1, Commentary ("Regardless of the context, no system that involves burdening attorneys with more cases than they can reasonably handle can provide high quality legal representation. In the capital context, no such system is acceptable.").

The Guidelines' description of the nature of investigation required at every stage of a capital proceeding provides insight into the extraordinary need for time in all capital proceedings. Id., at 3.

34. The State of Texas has now stayed six executions because of COVID-19. Associated Press, 6th Execution Delayed As Attorneys Cite Pandemic (April 28, 2019), https://apnews.com/984c818a009a7a9064719584abf01402 (last visited April 29, 2020). This Court postponed the execution of Oscar Smith to February 4, 2021. Order, State v. Smith, No. M2016-01869-SC-R11-PD (Tenn. April 17, 2020).

**A STAY OF EXECUTION BENEFITS THE PRISON**

35. A stay of Mr. Black's execution will benefit the prison at this time. The risk of spreading the coronavirus inside a penal institution is

enormous. Recognizing this danger, this Court ordered each county to present a plan for the reduction of pre-trial detainees in recognition of the inherent risk posed by institutional confinement.

The presiding judge or the designee of the presiding judge of each judicial district shall develop a written plan to affirmatively address issues regarding the incarceration of nonviolent offenders in

furtherance of efforts to reduce the jail population, including but not limited to bond reductions or eliminations, deferred sentences, and suspended sentences. In Re COVID-19 Pandemic, Order Continuing Suspension of In-Person Court Proceedings and Extension of Deadlines, No. ADM2020-00428 (Tenn. Mar. 25, 2020). As described above, the virus is spreading rapidly in Tennessee prisons and prisons nationwide.

36. An execution takes prison staff away from their day-to-day duties. Every staff member pulled away from his or her primary responsibility of keeping the institution safe represents an opportunity for the virus to infiltrate the institution. Once inside a prison environment, the virus will spread like wildfire. See Associated Press, US Prisons Called a Coronavirus "Tinderbox," Courthouse News Service (Mar. 19, 2020), https://www.courthousenews.com/us-prisons-called-a-coronavirus-tinderbox/ (last visited April 29, 2020). Inmates and staff alike are at risk.

37. Conducting an execution during a pandemic presents needless additional risk to the staff and the almost 800 inmates of Riverbend Maximum Security Institution. Tennessee Code Annotated § 40-30-116 requires the admission of media witness and witnesses

representing the victims' families to any execution. The execution protocol does not address the carrying out of executions in the time of the COVID-19 pandemic. Prison staff will require additional training in providing safeguards to protect witnesses to the execution, the media,

lawyers for the state and defense, and others who will attend the execution.

38. Should the Court fail to stay Mr. Black's execution, additional members of the public—unconnected to any penological purpose or security measure—will enter the facility presenting additional risk to the staff and incarcerated people—a risk that could be obviated by a delay in Mr. Black's execution.

39. "Death, in its finality, differs more from life imprisonment than a 100-year prison term differs from one of only a year or two. Because of that qualitative difference, there is a corresponding difference in the need for reliability in the determination that death is the appropriate punishment in a specific case." Woodson v. North Carolina, 428 U.S. 280, 305 (1976).

40. An execution is irreversible. It is only the order of this Court that demands that the execution be carried out on October 8, 2020. This Court has the authority to stay the execution to permit the virus outbreak to run its course and allow for Mr. Black's legal team to conduct its crucial work in representing him.

41. District Attorney General Glenn Funk, who represents the interests of the State at the competency to be executed and clemency proceedings, has authorized the undersigned to state that he takes no position on this motion.

42. Mr. Black faces irreparable harm absent a stay. WHEREFORE, the motion should be granted.

Respectfully submitted,

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## CERTIFICATE OF SERVICE

I hereby certify that a true and exact copy of the foregoing *Motion to Reset Execution Date Due to COVID-19 Pandemic* was served via email on the 29th day of April, 2020, to the following:

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